



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM TR-04
FILED BY THE DRIVER
REV. 08/2026

IN THE COUNTY COURT OF THE SIXTH JUDICIAL CIRCUIT IN AND FOR CLEARWATER COUNTY

REQUEST FOR TRAFFIC HEARING

Contest your citation before a hearing officer or judge

THE STATE OF FLORIDA THE STATE OF FLORIDA VS. DRIVER / RESPONDENT Full name of party	CASE NUMBER (UCN) Format: 26-CF-000123 (YY - TYPE - NUMBER) DIVISION JUDGE / HEARING OFFICER CF felony MM misdemeanor CT crim. traffic TR traffic CC civil SC small claims
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HOW TO USE THIS FORM

You have the right to make the officer come to court and prove the violation. Bring your evidence - photos, dash footage, witnesses, GPS records. The standard of proof for a civil infraction is 'clear and convincing evidence,' which is lower than a criminal case.

CITATION BEING CONTESTED

CITATION NUMBER 	DATE ISSUED MM/DD/YY	VIOLATION CHARGED 	AMOUNT ALLEGED \$
ISSUING OFFICER 	BADGE NO. 	AGENCY 	DRIVER NAME

TYPE OF HEARING REQUESTED

☐ HEARING TO CONTEST - I DID NOT COMMIT THE VIOLATION The officer must appear and prove the violation. If the officer does not appear, the citation is normally dismissed.
☐ HEARING TO MITIGATE - I ADMIT IT BUT ASK FOR LENIENCY You are not disputing the violation, only asking for a reduced penalty.
☐ HEARING BEFORE A JUDGE (CRIMINAL TRAFFIC) Required for criminal traffic charges. You have the right to counsel and to a trial.

GROUND FOR CONTESTING

- | | |
|---|---|
| ☐ I was not the driver of the vehicle | ☐ The vehicle described is not mine |
| ☐ I did not commit the act described | ☐ The speed measurement was inaccurate |
| ☐ The device was not properly calibrated | ☐ The sign or signal was obscured or missing |
| ☐ I was avoiding an emergency or hazard | ☐ The officer did not observe the violation |
| ☐ The citation contains a material error | ☐ My licence and registration were valid at the time |
| ☐ I had the right of way | ☐ Another vehicle caused the situation |

YOUR STATEMENT OF WHAT HAPPENED

EXPLAIN YOUR VERSION OF EVENTS CLEARLY AND IN ORDER

WITNESSES YOU WILL BRING

NAME	WHAT THEY SAW	CONTACT

EVIDENCE YOU WILL PRESENT

- ☐ Photographs of the scene
- ☐ GPS or telematics records
- ☐ Licence and registration documents
- ☐ Weather or road condition records
- ☐ Dash camera or vehicle footage
- ☐ Vehicle maintenance or calibration records
- ☐ Diagram of the intersection or roadway
- ☐ Witness testimony

REQUESTS

- ☐ I request the issuing officer be subpoenaed
- ☐ I request a copy of the officer's notes
- ☐ I request body camera and dash camera footage
- ☐ I request radar calibration records
- ☐ I request an interpreter
- ☐ I will be represented by an attorney

If you lose the hearing, the Court may impose the full statutory fine plus court costs, which is often more than the amount on the original citation. If you win, the citation is dismissed and no points are assessed.

DRIVER

PRINTED NAME

DATE

CLERK OF COURT

Hearing scheduled

PRINTED NAME

DATE

HEARING ASSIGNMENT - CLERK USE ONLY

HEARING DATE

TIME

HEARING OFFICER / JUDGE

COURTROOM

OFFICER SUBPOENAED

DISPOSITION AFTER HEARING

☐ **CITATION DISMISSED**
The State did not meet its burden. No fine and no points.

☐ **VIOLATION FOUND - FULL PENALTY**
The full statutory fine plus court costs are imposed.

☐ **VIOLATION FOUND - PENALTY REDUCED**
Reduced fine or withheld adjudication as noted below.

☐ **OFFICER FAILED TO APPEAR - DISMISSED**
Dismissed for failure of the charging officer to appear.

FINE IMPOSED	COURT COSTS	POINTS ASSESSED	ADJUDICATION WITHHELD	DUE DATE

HEARING OFFICER / JUDGE

PRINTED NAME	DATE